

Dated 14th January 2026

ARTIST - AGENT AGREEMENT

(1) Paul Nicholas Duncan of PND Fine Art



(2) Bola Kassim representing - Artists Unlimited



THIS AGREEMENT is made on the **14th January 2026**

BETWEEN:

- (1) **PAUL NICHOLAS DUNCAN of PND Fine Art**, an individual whose address is

(the "Artist"); and
- (2) **BOLA KASSIM of 25 Fielding Avenue, Twickenham , Middlesex TW2 5LX**
(the "Agent").

WHEREAS:

- i. The Artist is an artist known as **PND Fine Art**.
- ii. The Artist is an established artist of proven talents in the field of **Landscape Painting, Hyper Realism and Portraiture**
- iii. The Artist wishes to appoint the Agent and the Agent wishes to represent the Artist in connection with all matters relating to the Artist's career.

IT IS AGREED as follows:

1. Definitions and Interpretation

- 1.1 The headings in this Agreement are for convenience only and shall not affect its interpretation.
- 1.2 The Schedules form part of this Agreement and shall have the same force and effect as if set out in the body of this Agreement.
- 1.3 Persons shall include companies and other legal entities.
- 1.4 Unless the context otherwise admits words importing one gender shall include all other genders and words importing the singular shall include the plural and vice versa.
- 1.5 Reference to any statutory provisions in this Agreement shall include any statutory provisions, which amends or replaces it.

2. Agency

- 2.1 The Agent is hereby appointed as the Artist's exclusive personal agent and representative.
- 2.2 The Agent agrees to use his/her best endeavours in submitting the Artist's work for the purpose of securing assignments for the Artist.
- 2.3 The Agent shall negotiate the terms of any assignment that is offered, but the Artist has the right to reject any assignment if he/she believes that the terms are unacceptable.
- 2.4 The Agent's services under this Agreement are not exclusive. The Agent shall at all times be free to perform the same or similar services for others, as well as to engage in any and all other business activities.
- 2.5 The Artist understands that the Agent is not licensed as a "talent agency" and that this Agreement shall remain in full force and effect subject to any applicable regulations established by the **Laws of the United Kingdom** and the Artist agrees to modify this Agreement to the extent necessary to comply with any such laws.

3. Term

- 3.1 This Agreement shall take effect on _____ and shall remain in full force and effect for a term of **5 years** (hereinafter the "Initial Term") unless terminated as provided in clause 13.
- 3.2 This Agreement is automatically renewed for a further term of **12 months** from the expiry date of the Initial Term (hereinafter "Renewal Period") unless either party gives written notice of termination to the other not later than **60 business days** prior to the expiration of the Initial Term or the then current Renewal Period as applicable.

4. Artists Responsibilities

- 1. The Artist shall endeavour to provide and deliver all and any works and services procured by the Agent in representation of the Artist in the agreed and specified time.
- 2. It is agreed that Failure to adhere to any Client contract delivery time secured by the Agent on the behalf of a Client by the Artist will result in a £500 reduction of the final invoice price and an additional 10% to the Agent for reputational damage

Services

- 4.1 The Agent agrees during the term of this Agreement, to advise, counsel and assist the Artist in connection with all matters relating to the Artist's career in all branches of the entertainment industry, including without limitation, the following:



- i. in the selection of literary, artistic and career material;
- ii. with respect to matters pertaining to publicity, promotion, public relations and advertising;
- iii. with respect to the adoption of proper formats for the presentation of the Artist's talents and in determination of the proper style, mood, setting, business and characterisation in keeping with the Artist's talents;
- iv. in the selection of artistic talent to assist, accompany or embellish the Artist's presentation, with regard to general practices in the entertainment industries;
- v. with respect to such matters concerning compensation and privileges extended for similar artistic values;
- vi. with respect to agreements, documents and contracts for the Artist's services, talents, and/or artistic, literary and musical materials, or otherwise;
- vii. with respect to the selection, supervision and coordination of those persons, firms and corporations that may counsel, advise, procure employment, or otherwise render services to or on behalf of Artist, such as accountants, attorneys, business managers, publicists and talent agents.

5. Promotion

- 5.1 The Artist shall provide the Agent with such samples of work as are from time to time necessary for the purpose of securing assignments. These samples shall remain the property of the Artist and be returned to the Artist within **30 business days** from termination of this Agreement.
- 5.2 The Agent shall take reasonable endeavours to protect the samples from loss or damage and the Agent shall be liable for such loss or damage only if caused by the Agent's negligence.
- 5.3 During the term of this Agreement, the Agent shall have the exclusive right to advertise and publicise his/her position of Artist's personal Agent and representative with respect to all aspects of the entertainment industry.

6. Authority of the Agent

- 4.1 The Agent is hereby appointed as the Artist's exclusive representative, to do any or all of the following, for or on behalf of the Artist during term of this Agreement:
 - 4.1.1 approve and authorise any and all publicity and advertising, subject to the Artist's previous approval;



- 4.1.2 approve and authorise the use of the Artist's name, photograph, likeness, voice, sound effects, caricatures, and literary, artistic and musical materials for the purpose of advertising any and all products and services;
- 4.1.3 execute in the Artist's name, all contracts for the Artist, subject to the Artist's previous consent to the material terms thereof; and
- 4.1.4 without in any way limiting the foregoing, generally do, execute and perform any other act, deed, matter or thing whatsoever, that ought to be done on behalf of the Artist.

7. Commissions

- 6.1 As compensation for the Agents' services, the Artist shall pay the Agent, during the term of this Agreement the following commissions of the Artist's gross earnings (hereinafter referred to as the "Commission"):
 - 6.1.1 **30%** of the Artist's gross earnings received in connection with all sales, assignments and transactions secured by the Agent.
- 6.2 The term "gross earnings" as used herein shall mean and include any and all gross monies or other consideration which the Artist may receive, acquire, become entitled to, or which may be payable to the Artist, or on the Artist's behalf, directly or indirectly (without any exclusion or deduction) as a result of the Artist's activities in the entertainment industry, whether as a performer, actor, host, spokeswoman writer, singer, musician, composer, publisher, or artist.
- 6.3 The Agent shall be entitled to receive his/her full commission as provided herein in perpetuity on the Artist's gross earnings derived from any agreements entered into during the term of this Agreement, notwithstanding the prior termination of this Agreement for any reason. The Artist also agrees to pay the Agent the commission following the term hereof upon and with respect to all of the Artist's gross earnings received after the expiration of the term hereof but derived from any and all employments, engagements, contracts, agreements and activities, negotiated, entered into, commenced or performed during the term hereof relating to any of the foregoing, and upon any and all extensions, renewals and substations thereof and therefore, and upon any resumptions of such employments, engagements, contracts, agreements and activities which may have been discontinued during the term hereof and resumed within a period of **1 year** thereafter.



- 6.4 The Agent is hereby authorised to receive on the Artist's behalf, all "gross monies and other considerations" and to deposit all such funds into a separate trust account in a bank . The Agent shall have the right to withdraw from such account all expenses and commissions to which the Agent is entitled hereunder and shall remit the balance to the Artist or as the Artist shall direct. Notwithstanding the foregoing, the Artist may, at any time, require all "gross monies or other considerations" to be paid to a third party, provided that such party shall irrevocably be directed in writing to pay the Agent all expenses and commissions due hereunder.
- 6.5 The term "gross monies or other considerations" as used herein shall include, without limitation, salaries, earnings, fees, royalties, gifts, bonuses, share of profit and other participations, shares of stock, partnership interests, percentages music related income, earned or received directly or indirectly by the Artist or Artist's heirs, executors, administrators or assigns, or by any other person, firm or corporation on the Artist's behalf.
- 6.6 It is understood by both parties that no commission shall be paid on assignments rejected by the Artist or for which the Artist fails to receive payments, regardless of the reason payment is not made.

8. Loan and Advances

- 7.1 The Agent will make loans or advances to the Artist or for the Artist's account and incur some expenses on the Artist's behalf for the furtherance of the Artist's career in amounts to be determined solely by the Agent in the Agent's best, good faith business judgement. The Artist hereby authorises the Agent to recoup and retain the amount of any such loans, advances and/or expenses, including without limitation, transportation and living expenses while travelling, promotion and publicity expenses, and all other reasonable and necessary expenses, from any sums the Agent may receive on behalf of the Artist. The Agent shall provide the Artist with monthly statements of all expenses incurred hereunder and the Agent shall be reimbursed by the Artist within **7 business days** of receipt by the Artist of any such statement. Notwithstanding the foregoing, any loans, advances or payment of expenses by the Agent hereunder shall not be recoupable by the Agent hereunder until the Artist has earned revenue in the entertainment industry.

9. Billing

- 9.1 The Agent shall be responsible for sending an invoice to the Artist, which details all amounts corresponding to work done and commission due. When the Agent is the caretaker of payment that is intended for the Artist, the Agent shall immediately remit such payment to the Artist and shall not appropriate any sums for himself/herself unless an invoice has previously been given to the Artist.



10. Payments

- 10.1** All payments are due within **7** business days of receipt of any fees or invoice covered by this Agreement. Late payments shall be accompanied by the interest calculated at the rate of 5% per month.

11. Accounting

- 10.1** The party responsible for billing shall send copies to the other party when rendered. If requested, that party shall also provide the other party with accounting books showing all assignments for the period, the client's names, the fees paid, expenses incurred by the Artist, the dates of payment, the amounts on which the Agent's commissions are to be calculated, and the sums due less those amounts already paid.
- 10.2** The party responsible for the billing shall keep the books and records with respect to commissions due at his/her place of business and shall permit the other party to inspect these books and records during normal business hours on the giving of reasonable notice.

12. Warranties

- 11.1** The Artist hereby represents and warrants that to the best of his/her knowledge the Artist is free to enter into this Agreement, and has not heretofore made and will not hereafter enter into or accept any engagement, commitment or agreement with any person, firm or corporation which will, can or may interfere with the full and faithful performance by the Artist of the covenants, terms and conditions of this Agreement.
- 11.2** The Artist warrants to pursue its career in a manner consistent with its values, goals, philosophy and disposition and to do all things necessary and desirable to promote such career and earnings.
- 11.3** The Artists warrants not to, without the Agent's prior written approval, engage any other person, firm or corporation to render any services of the kind required of the Agent hereunder or which the Agent is permitted to perform hereunder.

13. Termination

- 13.1** This Agreement may be terminated by either party by giving **60 business days'** written notice to the other party.

14. Entire Agreement

- 14.1** This Agreement contains the entire and only agreement between the parties and supersedes all previous agreements between the parties respecting the



subject matter of this Agreement.

- 14.2 Each party acknowledges and agrees that in entering into this Agreement it has not relied on, and shall have no remedy in respect of, any statement, representation, undertaking or warranty, whether oral or in writing, save as are expressly set out in this Agreement.

15. Waiver

- 15.1 The failure by either party to enforce at any time or for any period any one or more of the terms and conditions contained in this Agreement shall not be a waiver of them or of the right at any time subsequently to enforce all the terms and conditions of this Agreement.

16. Variations

- 16.1 No addition to or modification of any provision of this Agreement shall be binding on the parties unless made by a written instrument and signed by a duly authorised representative of each of the parties.

17. No Partnership

- 17.1 Nothing in this Agreement shall be construed as creating a partnership or joint venture of any kind between the parties, nor does it constitute an employment agreement. Both parties agree that the Agent is acting as an independent contractor.

18. Assignment

- 18.1 This Agreement is personal to the parties and neither party may without the prior written consent of the other party transfer the benefit of this Agreement or subcontract or delegate to any third party the performance of his duties under this Agreement.

19. Notices

- 19.1 Any notice required to be given under this Agreement shall be in writing and signed by the person giving it and may be delivered personally or sent by facsimile transmission or other electronic means or by first class post to the address set out above in respect of each of the parties or to such other address as may otherwise be notified by either party to the other as being an alternative address for service.

- 19.2 Any notice so served shall be deemed to be received:

19.2.1 if delivered personally, at the time of delivery;

19.2.2 if sent by facsimile transmission or other electronic means, on the day of transmission provided it is sent during Business Hours on a Business Day and if not on the next Business day; and

19.2.3 if sent by post, 48 hours after the date of posting.



20. Severance

- 20.1 If any provision of this Agreement shall be found by any court or administrative body of competent jurisdiction to be invalid or unenforceable, such invalidity or unenforceability shall not affect the other provisions of this Agreement which shall remain in full force and effect.
- 20.2 If any provision of this Agreement is so found to be invalid or unenforceable but would be valid or enforceable if some part of the provision were deleted, the provision in question shall apply with such modification(s) as may be necessary to make it valid and enforceable.
- 20.3 The parties agree to attempt to substitute for any invalid or unenforceable provision a valid and enforceable provision which achieves to the greatest extent possible the same effect as would have been achieved by the invalid or unenforceable provision.

21. Governing Law and Jurisdiction

- 21.1 This Agreement shall be governed by and construed in accordance with English law.
- 21.2 Any dispute or difference between the parties arising out of or in accordance with the terms and effect of this Agreement shall be determined by the exclusive jurisdiction of the English courts.

IN WITNESS WHEREOF this Agreement has been duly executed the day and year first before written

SIGNED by

Paul Nicholas Duncan

Signature:_____

If the Agent is an individual use the following paragraph and delete the option above:

SIGNED by

Bola Kassim

Signature:_____

